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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW AND JUSTICE

Islamabad, the 7th January, 2017

No. F. 2(1)2017-Pub.—The following Ordinance promulgated by the President is hereby published for general information:—

ORDINANCE NO. II OF 2017

AN

ORDINANCE

further to amend the National Accountability Ordinance, 1999

WHEREAS it is expedient further to amend the National Accountability Ordinance, 1999 (XVIII of 1999), for the purpose hereinafter appearing;

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(07)

Price : Rs. 3.00

[12(2017)/Ex. Gaz.]

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the National Accountability (Amendment) Ordinance, 2017.

(2) It shall come into force at once.

2. **Amendment of section 15, Ordinance XVIII of 1999.**—In the National Accountability Ordinance (XVIII of 1999), in section 15, for sub-section (a), the following shall be substituted, namely:—

“(a) Where an accused person is convicted of an offence under section 9, of this Ordinance he shall forthwith cease to hold public office, if any, held by him and further he shall stand disqualified from being a holder of public office”.

3. **Substitution of section 25, Ordinance XVIII of 1999.**— In the said Ordinance, for section 25, the following shall be substituted, namely:—

“25. **Voluntary return.**— (1) Notwithstanding anything contained in any other law for the time being in force or section 18, a holder of public office or other person, before or after authorization of investigation against him or filing of the Reference or commencement of the trial or during pendency of an appeal, voluntarily offers to return to the NAB the illegal gain received, acquired or made by him, plus capital gain thereon and profit at the bank rate from the date of its illegal receipt, acquisition, or making till deposit, the NAB may, after taking into consideration the facts and circumstances of the case, accept such offer, subject to approval of the concerned Court or Appellate Court as the case may be.

(2) The holder of public office or other person shall deposit with the NAB the amount of the illegal gain plus capital gain thereon and profit as determined by the Court or Appellate Court and comply with such other terms and conditions as the Court may consider appropriate, whereupon the case shall stand closed and such holder of public office or other person if in custody shall be released.

(3) Notwithstanding the closure of his case under sub-section (2), such holder of public office or other person shall be deemed to have been convicted of the offence of corruption and corrupt practices and—

- (i) shall stand disqualified from being a holder of public office; and
- (ii) if such person is in the service of Pakistan or any autonomous body, organization, institution, undertaking, concern or establishment controlled or administered by or under the Federal Government or a Provincial Government, shall stand dismissed from service forthwith without any pecuniary benefits and shall not thereafter be eligible to hold public office.

(4) The illegal gain plus capital gain and profit deposited with the NAB under sub-section (2) shall be transferred to the Federal Government or, as the case may be, a Provincial Government or the bank or financial institution, company, body corporate, co-operative society, statutory body, authority or person concerned within thirty days from the date of such deposit.

Explanation.— In this section “illegal gain” means such assets of an accused as are found during investigation or determined by the Court as the case may be to have been received or acquired or made directly or indirectly, in the course of, as a consequence of or through corruption and corrupt practices, and held by him at any time whether in his own name or in the name of his *benamidars* or dependents or associates.”.

MAMNOON HUSSAIN,
President.

KARAMAT HUSSAIN NIAZI,
Secretary.